

American Data Privacy Rights and Compensation Act

Sep 29, 2026

Drafter's notes

This draft bill gives everyone residing in the United States GDPR-style control over personal data, requires companies to pay people for data they collect automatically, and makes data breaches cost \$25,000 per affected person, paid to that person. It is a working draft for discussion, not reviewed legal text; have legislative counsel review it before introduction.

How it maps to the GDPR. Titles II, III and V follow the GDPR's structure: processing principles and lawful bases (GDPR Arts. 5–11), individual rights (Arts. 12–22), and controller and processor duties including breach notice (Arts. 24–39). Titles IV and VI are new: the GDPR does not require payment for data or pay breach penalties to individuals.

Policy choices written in as instructed:

- Covered persons: every individual residing in the United States, regardless of citizenship or immigration status. U.S.-domiciled companies must also follow the privacy laws of every other country for people residing there.
- Vehicle manufacturers pay \$300 per month, as cash or credit, to collect data from a car's owner.
- Wireless carriers and device makers pay a \$500 one-time fee at device activation.
- Breach damages are \$25,000 per affected person, paid to individuals and never to any government.
- Other compensation categories are listed in Appendix A with amounts left to rulemaking.

Issues for review before introduction:

1. *Scale of breach damages.* A breach affecting 10 million people would owe \$250 billion. Most companies could not pay, so injured people could end up in bankruptcy court. Section 603 adds a victim-priority rule and a claims fund to address this; consider also a per-incident cap or a tiered scale.
2. *Foreign residents.* Section 105(e) makes breaking a foreign country's privacy law a violation of this Act, enforced by the Commission. As drafted, foreign residents do not receive Title IV payments or the \$25,000 breach damages; decide whether they should.
3. *Constitutional questions.* Mandatory payments and statutory damages may draw Takings Clause, First Amendment and Article III standing challenges. Section 702 gives a statutory injury, but counsel should test it.
4. *Preemption.* The draft sets a federal floor and lets states go further. Industry will push for full preemption.
5. *Government liability.* Title VIII waives federal sovereign immunity, which Congress can do. States are harder: under the Eleventh Amendment, Congress can make states pay damages only in limited cases, such as enforcing the Fourteenth Amendment. Counsel should build the record to support that.

Title I — General Provisions

Sec. 101. Short title. This Act may be cited as the "American Data Privacy Rights and Compensation Act" (ADPRCA).

Sec. 102. Findings. Congress finds that:

1. Personal data about Americans is collected, sold and shared at massive scale, often without their knowledge.
2. Vehicles, phones and connected devices collect location, driving, contact and biometric data automatically when a person uses them.
3. Companies profit from this data while the people it describes receive nothing.
4. Data breaches expose millions of Americans to fraud and identity theft, while fines paid to governments do not make victims whole.
5. The United States lacks a comprehensive federal privacy law comparable to the European Union's General Data Protection Regulation.

Sec. 103. Purpose. This Act establishes privacy as a right of every covered person, gives covered persons control over their personal data, requires fair payment for its commercial use, and makes the people harmed by breaches the ones who are compensated.

Sec. 104. Definitions. In this Act:

1. **Covered person** — any individual residing in the United States, regardless of citizenship or immigration status.
2. **Personal data** — any information that identifies, relates to, or could reasonably be linked to a covered person or their device, including inferences drawn from it.
3. **Sensitive data** — health, genetic, biometric, precise geolocation, financial account, Social Security number, sexual orientation, religious belief, union membership, immigration status, and data of persons under 17.
4. **Processing** — any operation performed on personal data: collection, recording, storage, use, analysis, disclosure, sale, sharing, or deletion.
5. **Controller** — an entity that decides why and how personal data is processed.
6. **Processor** — an entity that processes personal data on behalf of a controller.
7. **Consent** — a freely given, specific, informed and unambiguous affirmative act. Pre-checked boxes, silence, continued use, and agreement to general terms of service are not consent.
8. **Automatic data collection** — processing that starts because a covered person connects, pairs, activates, or powers on a device or vehicle, without a separate affirmative act of consent to that processing.
9. **Data compensation** — a payment or credit owed to a covered person under Title IV.
10. **Personal data breach** — unauthorized access to, or acquisition, disclosure, alteration, or loss of, personal data.
11. **Commission** — the Federal Trade Commission, acting through the Office of Data Protection created by Section 701.

Sec. 105. Scope.

(a) *Who is protected.* This Act protects covered persons wherever their data is processed.

(b) *Who must comply.* This Act applies to any controller or processor that processes personal data of a covered person, whether or not it is located in the United States.

(c) *Presumption of coverage.* A controller shall treat any person with a U.S. address, U.S. phone number, or U.S.-registered vehicle or device as a covered person. A controller may not collect proof of residence, citizenship or immigration status to determine coverage.

(d) *Exemptions.* This Act does not apply to processing by an individual for purely personal or household purposes.

(e) *Compliance with foreign privacy laws.* A controller or processor that is incorporated, organized, or has its principal place of business in the United States shall comply with the data privacy and data protection laws of each country in which a person whose data it processes resides, as those laws apply to that person. A failure to comply is a violation of this Act, enforceable by the Commission under Section 703. Where this Act gives greater protection than the foreign law, this Act controls.

Title II — Principles of Data Processing

Sec. 201. Principles. Every controller shall ensure that personal data is:

1. **Lawful, fair and transparent** — processed on a lawful basis under Section 202 and explained in plain language.
2. **Purpose-limited** — collected for specific, stated purposes and not used for unrelated purposes.
3. **Minimized** — limited to what is necessary for the stated purpose.
4. **Accurate** — kept correct and up to date.
5. **Storage-limited** — deleted once no longer needed for the stated purpose, and in any case after a retention period the controller discloses in advance.
6. **Secure** — protected by security appropriate to the risk, under Section 503.
7. **Accountable** — the controller must be able to prove compliance with each principle.

Sec. 202. Lawful bases for processing. Processing is lawful only if at least one of the following applies:

1. The covered person gave consent for one or more specific purposes.
2. Processing is necessary to perform a contract the covered person asked for, limited to what that contract requires.
3. Processing is necessary to comply with federal or state law.
4. Processing is necessary to protect someone's life or physical safety.
5. Processing is necessary for a task in the public interest carried out by a government entity, expressly authorized by statute, and permitted by Title VIII.

Unlike GDPR Article 6(1)(f), this Act does **not** allow processing on the basis of a company's "legitimate interests."

Sec. 203. Conditions for consent.

(a) A controller must be able to show that consent was given.

(b) A request for consent must be separate from other terms, in plain language, and no longer than one screen or page.

- (c) A covered person may withdraw consent at any time, and withdrawing must be as easy as giving it.
- (d) A controller may not deny a product or service, or charge a different price, because a covered person refuses consent to processing that is not necessary to provide that product or service.
- (e) Consent expires after 12 months unless the covered person renews it.

Sec. 204. Sensitive data. Sensitive data may be processed only with express, separate consent for each purpose, or where strictly necessary under Section 202(3) or (4). Sensitive data may never be sold.

Sec. 205. Minors. Personal data of a person under 17 may be processed only with the consent of a parent or guardian, and may not be used for targeted advertising or sold.

Sec. 206. Prohibited practices. No controller shall:

1. Use interface designs that trick or pressure a person into consenting ("dark patterns").
2. Sell or share personal data with a data broker without express consent.
3. Combine data from different sources to build a profile of a covered person without express consent.

Sec. 207. Medical data.

(a) *Who qualifies.* This section applies only to health care providers, health plans, and health care clearinghouses, and to processors acting for them under a written contract. Consumer health apps, wearables makers, and other entities that do not provide or pay for care do not qualify.

(b) *Treatment, payment and operations.* A qualifying entity may process medical data without separate consent when necessary to treat the patient, obtain payment for that care, or run its health care operations. The 12-month consent expiry in Section 203(e) does not apply.

(c) *Longer retention.* A qualifying entity may keep complete medical records for the longest of:

1. the period required by federal or state law;
2. 10 years after the patient's last treatment; or
3. for a patient treated as a minor, 10 years after the patient turns 18.

Records of chronic conditions, immunizations, allergies, implanted devices, and genetic test results may be kept for the patient's lifetime. Retention under this subsection satisfies Section 201(3) and (5).

(d) *Deletion and correction.* A patient may request deletion under Section 304, but a qualifying entity may keep what subsection (c) permits and shall delete the rest. If an entity refuses a correction, the patient may add a statement of disagreement, which must be kept with the record.

(e) *Emergencies.* Any health care provider may access a patient's medical data without consent when needed to treat an emergency that threatens life or serious harm.

(f) *Research and public health.* Medical data may be used for research only with the patient's consent, or without it only if de-identified or approved by an institutional review board under federal rules. Reporting to public health authorities is permitted where required by law.

(g) *Protections that still apply.* Qualifying entities remain bound by every other part of this Act, including:

1. no sale of medical data, and no use for marketing;
2. no use in employment, housing, credit, or life, disability or long-term care insurance decisions;
3. the security duties in Section 503;
4. the patient's rights of access and portability, with records delivered within 15 days; and
5. full breach liability under Title VI.

(h) *Compensation.* Title IV payments are not owed for processing permitted by subsections (b), (e) and (f). They are owed for any other commercial use.

(i) *Relationship to HIPAA.* The Health Insurance Portability and Accountability Act continues to apply. Where HIPAA and this Act differ, the provision more protective of the patient controls.

Title III — Rights of Covered Persons

Sec. 301. Right to notice. Before or at collection, a controller shall tell the covered person, in plain language: who the controller is; what data it collects; why; the lawful basis; who receives it; how long it is kept; whether data compensation is owed under Title IV; and how to exercise the rights in this Title.

Sec. 302. Right of access. A covered person may obtain, free of charge, a copy of all personal data a controller holds about them, the sources of that data, every third party it was disclosed or sold to, and the amount the controller received for it.

Sec. 303. Right to correction. A covered person may have inaccurate or incomplete personal data corrected.

Sec. 304. Right to deletion. A covered person may have their personal data deleted, and the controller shall instruct every processor and third party that received it to delete it too. Exceptions apply only where retention is required by law or needed to complete a transaction the person requested.

Sec. 305. Right to data portability. A covered person may receive their personal data in a common, machine-readable format and have it sent directly to another controller.

Sec. 306. Right to object and opt out. A covered person may object at any time to processing for targeted advertising, profiling, or sale, and the controller shall stop. Controllers shall honor a universal opt-out signal sent by a browser, device or vehicle setting.

Sec. 307. Automated decisions. A covered person has the right not to be subject to a decision based solely on automated processing that significantly affects them, including decisions about credit, insurance, housing, employment, education or health care. They may request human review, an explanation of the main factors, and a chance to contest the decision.

Sec. 308. Right to compensation. A covered person has the right to data compensation under Title IV and to breach damages under Title VI. This right cannot be waived by contract, terms of service, or arbitration agreement.

Sec. 309. Exercising rights.

(a) Controllers shall respond within 30 days, extendable once by 30 days with written notice.

(b) Controllers shall provide at least two free methods of submitting requests, one of them online.

(c) Controllers may verify identity only with data they already hold, and only as much as needed.

Sec. 310. Non-retaliation. A controller may not deny service, charge more, or reduce quality because a covered person exercised any right under this Act.

Sec. 311. No forced arbitration. Any pre-dispute agreement to arbitrate claims under this Act, or to waive class actions, is void.

Title IV — Compensation for Personal Data

Sec. 401. General rule. Any controller that collects personal data through automatic data collection, or that uses or sells personal data for any purpose beyond what is strictly necessary to provide a product or service the covered person requested, shall pay data compensation to that covered person at the rates in this Title.

Sec. 402. Compensation schedule.

Collector	Trigger	Compensation to the covered person
Motor vehicle manufacturer, or any entity collecting data through a vehicle's systems	Collecting data from a vehicle, or from a phone or device connected to it	\$300 per month, as cash or as a credit, for every month data is collected
Wireless carrier, device manufacturer, or operating system provider	Activating a new cell phone or new service on a device	\$500 one-time payment per device activation
Other categories	As listed in Appendix A	Set by Commission rule under Section 407

Sec. 403. Vehicle data.

(a) *Who is paid.* Compensation is owed to the registered owner of the vehicle. If the vehicle is leased, it is owed to the lessee.

(b) *Form of payment.* The owner chooses cash payment or a credit toward vehicle payments, service, parts or subscriptions. A credit must be usable at any authorized dealer and may not expire.

(c) *Consent required first.* Vehicle data collection may not begin until the owner consents under Section 203. The manufacturer shall display the monthly compensation offer on the vehicle's screen and in writing at sale.

(d) *Connected devices.* Data collected from a phone or other device paired with the vehicle — contacts, messages, call logs, location, app data — is vehicle data under this section.

(e) *Safety exception.* Data strictly necessary for crash notification, a safety recall, or emergency response may be collected without payment, may be used for no other purpose, and must be deleted within 30 days.

(f) *No price increase.* A manufacturer may not raise the price of a vehicle, or reduce features, for an owner who refuses data collection.

Sec. 404. Cell phone and device activation.

(a) The \$500 payment is owed by each controller that collects personal data upon activation, whether carrier, device maker, or operating system provider.

(b) Payment is due within 60 days of activation, by check, electronic transfer, or — only if the person chooses — account credit.

(c) A person who declines data collection at activation owes nothing and receives full device function.

Sec. 405. Adjustment for inflation. The Commission shall adjust all amounts in this Title every January 1 by the change in the Consumer Price Index.

Sec. 406. Records and reporting. Every controller owing compensation shall keep records of payments for 7 years and report annually to the Commission the number of covered persons paid and the total amount paid.

Sec. 407. Additional categories. Within 18 months of enactment, the Commission shall, after public comment, set compensation amounts for the categories in Appendix A. It may add categories by rule. Amounts set under this section may not be lower than the value the controller receives from the data.

Title V — Obligations of Controllers and Processors

Sec. 501. Privacy by design and default. Controllers shall build data protection into products from the start. By default, only the data necessary for each specific purpose may be collected, and data-sharing settings shall be off until the covered person turns them on.

Sec. 502. Processors. A controller may use only processors that guarantee compliance with this Act, under a written contract. A processor may process data only on the controller's documented instructions. Controller and processor are jointly and severally liable for violations.

Sec. 503. Security of processing. Controllers and processors shall maintain security appropriate to the risk, including at minimum:

1. Encryption of personal data in storage and in transit.
2. Multi-factor authentication for systems holding personal data.
3. Regular testing and independent audit of security measures, at least once a year.
4. Deletion of data past its disclosed retention period.
5. Written incident response plans, tested annually.

Sec. 504. Records of processing. Each controller shall keep a written record of its processing activities: purposes, categories of data and persons, recipients, retention periods, and security measures. It shall provide the record to the Commission on request.

Sec. 505. Data protection impact assessments. Before any processing likely to create high risk — including processing of sensitive data, automatic data collection, large-scale profiling, or new technologies — the controller shall assess the risks and file the assessment with the Commission.

Sec. 506. Data protection officer. Any controller that processes personal data of more than 100,000 covered persons a year, or any sensitive data, shall appoint a data protection officer who reports to the highest level of management and is the contact for covered persons and the Commission.

Sec. 507. Breach notification.

(a) *To the Commission.* A controller shall notify the Commission within 72 hours after becoming aware of a personal data breach.

(b) *To covered persons.* A controller shall notify each affected covered person without undue delay, and no later than 7 days after becoming aware of the breach.

(c) *Contents.* Notice shall state what happened, what data was involved, likely consequences, steps taken, and how to claim damages under Title VI.

(d) *Processors.* A processor shall notify its controller within 24 hours of becoming aware of a breach.

Sec. 508. Transfers outside the United States. Personal data of covered persons may be transferred outside the United States only to a country or recipient that ensures protection equal to this Act, as determined by the Commission or by binding contract. The controller remains liable for any breach abroad.

Title VI — Liability for Data Breaches

Sec. 601. Breach damages.

(a) *Amount.* Any controller or processor that stores personal data involved in a personal data breach shall pay \$25,000 to each affected covered person.

(b) *Strict liability.* Damages are owed whether or not the controller was negligent and whether or not the covered person shows financial loss. Exposure of the data is the injury.

(c) *Payable only to individuals.* All breach damages are paid directly to affected covered persons. No part of them may be paid to, retained by, or credited to the federal government, any state or local government, or any agency.

(d) *Not a cap.* Breach damages are in addition to any actual damages a covered person proves, and to data compensation owed under Title IV.

(e) *Joint liability.* Where a breach occurs at a processor, the controller and processor are jointly and severally liable.

(f) *Credit and identity monitoring.* In addition to the \$25,000, the controller shall provide each affected covered person, at no cost, 5 years of credit monitoring from all three national credit bureaus, identity theft monitoring, and identity restoration services, plus insurance covering identity theft losses. The 5 years begins when the person enrolls, and enrollment remains open for 2 years after notice under Section 507(b).

(g) *Legal fees for resulting harm.* In addition to the \$25,000, the controller shall pay each affected covered person's reasonable attorney's fees and legal costs for any harm resulting from the breach,

including identity theft, fraudulent accounts or debts, tax fraud, credit disputes, and collection actions. The covered person may choose their own attorney, and the controller shall pay invoices within 30 days.

Sec. 602. Payment process.

- (a) Within 90 days of the notice required by Section 507(b), the controller shall pay each affected covered person, or deposit the full amount with the claims administrator under Section 603.
- (b) Covered persons need not file suit to receive payment. Unpaid damages accrue interest at 10% a year and may be enforced under Section 702.
- (c) Attorney's fees in any action or settlement are paid by the controller separately and may not reduce the \$25,000 owed to each person.

Sec. 603. Victim priority and claims fund.

- (a) Claims for breach damages have priority over all unsecured claims and all equity interests in any bankruptcy or insolvency proceeding.
- (b) The Commission shall appoint an independent claims administrator for any breach affecting more than 10,000 covered persons. The administrator's costs are paid by the controller.
- (c) Officers and directors who knowingly failed to meet the security requirements of Section 503 are personally liable for damages the company cannot pay.
- (d) Any controller processing data of more than 100,000 covered persons shall carry breach insurance or post a bond, in amounts set by Commission rule.

Sec. 604. No defense by encryption alone. Data counts as breached if it was encrypted but the key was also compromised or the encryption did not meet Commission standards.

Sec. 605. Repeat breaches. [Optional — drafter's addition.] A controller with a second breach within 5 years pays \$100,000 per affected covered person for the second and any later breach.

Title VII — Enforcement and Final Provisions

Sec. 701. Office of Data Protection. There is established within the Federal Trade Commission an Office of Data Protection, headed by a Director appointed by the President with the advice and consent of the Senate. The Office shall enforce this Act, issue rules, publish compliance guidance, and run a public complaint portal.

Sec. 702. Private right of action.

- (a) Any covered person harmed by a violation of this Act may sue in federal or state court.
- (b) A violation of this Act is a concrete injury to the covered person, whether or not they suffered financial loss.
- (c) A court shall award the greater of actual damages or statutory damages of \$5,000 per violation (other than breach damages, which are set by Section 601), plus reasonable attorney's fees and costs.
- (d) Class actions are permitted.

(e) The limitation period is 4 years from when the covered person learned, or should have learned, of the violation.

Sec. 703. Enforcement by the Commission and states.

(a) The Commission may order a controller to stop processing, delete data, pay unpaid data compensation or breach damages, and correct violations.

(b) State attorneys general may sue on behalf of residents to enforce this Act.

(c) Any money recovered by the Commission or a state attorney general for compensation or breach damages shall be distributed to affected covered persons, consistent with Section 601(c).

Sec. 704. Civil penalties. For violations of Titles II, III and V, the Commission may impose civil penalties of up to 4% of the controller's total worldwide annual revenue or \$20,000,000, whichever is greater. These penalties do not apply to breach damages under Title VI, which are paid only to individuals.

Sec. 705. Relationship to state law. This Act sets a minimum standard. It does not preempt any state law that gives covered persons greater protection or compensation.

Sec. 706. Severability. If any provision of this Act is held invalid, the rest of the Act remains in effect.

Sec. 707. Effective dates.

1. Titles I, II, III and V: 18 months after enactment.
2. Title IV compensation for vehicles and cell phones: 12 months after enactment, applying to all vehicles and devices still collecting data on that date, not only new ones.
3. Title VI breach damages: 12 months after enactment, for breaches occurring on or after that date.
4. Commission rules under Sections 407 and 603(d): within 18 months after enactment.

Sec. 708. Authorization of appropriations. Such sums as are necessary are authorized to carry out this Act.

Title VIII — Limits on Government Access and Use

Sec. 801. Government entities are controllers. Every federal, state, tribal and local government agency, department, court, and law enforcement body that processes personal data is a controller under this Act. Titles II, III, V and VI apply to it, except as this Title provides.

Sec. 802. Warrant requirement. No government entity may obtain personal data about a covered person from a controller or processor — including location, communications, vehicle, device, browsing, financial, medical or biometric data — without a warrant issued by a judge on probable cause, describing the specific person and data sought. A subpoena, administrative request, or voluntary disclosure is not a substitute. Exceptions apply only for:

1. the covered person's own written consent; or
2. an emergency involving imminent danger of death or serious injury, where a warrant is sought within 48 hours after access.

Sec. 803. No buying around the warrant. No government entity may buy, rent, license, or receive for free personal data about covered persons from a data broker or any other third party that it could not obtain directly without a warrant.

Sec. 804. Prohibited surveillance practices. No government entity may:

1. conduct bulk or dragnet collection of personal data about covered persons;
2. obtain geofence warrants, keyword search warrants, or other orders that identify people by searching the data of many;
3. use real-time facial recognition on public spaces, or run facial recognition searches without a warrant;
4. require a company to build a way to bypass encryption or security features;
5. query data collected for foreign intelligence purposes for information about a covered person without a warrant; or
6. collect or keep data on a covered person because of their lawful speech, religion, political activity, or association.

Sec. 805. Notice to the person. A government entity that obtains a covered person's data under Section 802 shall notify that person within 90 days. A court may delay notice for up to 90 more days at a time, and only on specific findings that notice would endanger a person or destroy evidence.

Sec. 806. Limits on use and sharing. Data obtained for one investigation or purpose may not be used for another, or shared with another agency, without a new warrant. Data not relevant to the investigation shall be deleted within 90 days.

Sec. 807. Exclusion of unlawfully obtained data. Data obtained in violation of this Title, and anything derived from it, may not be used as evidence in any criminal, civil, administrative or immigration proceeding.

Sec. 808. Transparency. Each government entity shall publish an annual report of the number of warrants, emergency requests, and data demands made under this Title, and the types of data obtained. Each company receiving such demands may publish the same counts.

Sec. 809. Government breaches and remedies.

(a) A government entity is liable for breach damages, credit monitoring, and legal fees under Title VI in the same amounts as any other controller.

(b) Any covered person harmed by a violation of this Title may sue the responsible government entity, and any official who knowingly violated it, under Section 702.

(c) The United States waives its sovereign immunity for claims under this Act. This Act is enacted in part under Section 5 of the Fourteenth Amendment to reach state and local governments.

(d) Qualified immunity is not a defense to a claim under this Title.

Sec. 810. No override without Congress. No executive order, agency rule, or interpretation may authorize any practice this Title prohibits. Any later law that limits this Title must say so expressly.

Sec. 811. Effective date. This Title takes effect 12 months after enactment.

Appendix A — Additional Compensation Categories (amounts to be determined)

The Commission shall set compensation for each category below under Section 407; the "payment model" column is a starting suggestion for rulemaking.

#	Category	Examples of collectors	Data typically collected	Suggested payment model
1	Smart TVs and streaming devices	TV makers, streaming platforms	Viewing history (automatic content recognition), voice, app use	Monthly
2	Smart home devices and voice assistants	Smart speakers, thermostats, doorbells, cameras	Audio, video, presence, routines	Monthly
3	Wearables and fitness trackers	Smartwatches, fitness bands, smart rings	Heart rate, sleep, location, health metrics	Monthly
4	Mobile apps	Any app sharing data with third parties	Location, contacts, device identifiers	Per app, one-time at install plus monthly
5	Internet service providers	Home broadband and mobile data providers	Browsing history, DNS queries, usage	Monthly
6	Personal computers and operating systems	PC makers, OS providers	Telemetry, usage, identifiers	One-time at activation
7	Search engines and social media platforms	Platforms using data for targeted ads	Searches, posts, interactions, inferred interests	Monthly or share of ad revenue
8	Retail loyalty programs and payment processors	Stores, card networks, payment apps	Purchase history	Per sale of data to third parties
9	Data brokers	Companies buying and reselling personal data	Compiled profiles	Per sale, per person
10	Usage-based auto	Insurers using	Driving behavior,	Monthly, separate

#	Category	Examples of collectors	Data typically collected	Suggested payment model
	insurance	telematics devices or apps	location	from vehicle payment
11	Health and genetic testing services	DNA kits, health apps, telehealth	Genetic, health data	One-time plus per secondary use
12	Connected appliances	Refrigerators, washers, robot vacuums	Usage, home maps	One-time at activation
13	Rideshare, delivery and navigation services	Ride, food delivery, map apps	Location, trip history	Monthly
14	Public Wi-Fi and in-store tracking	Retailers, airports, venues	Device location, foot traffic	Per visit or monthly
15	Employer monitoring	Employers tracking employee devices or activity	Keystrokes, location, productivity	Monthly
16	Education technology	Learning platforms, school devices	Student performance, behavior	Prohibited for minors; set rate for adults
17	AI training use	Companies using personal data to train AI models	Text, images, voice	One-time per data set, plus per use
18	Facial recognition and biometric scanning	Stores, venues, apps	Faceprints, fingerprints, voiceprints	Per capture; express consent required
19	Connected medical devices	Insulin pumps, CPAP machines, monitors	Health data	Monthly, beyond what treatment requires
20	Electric vehicle chargers and smart meters	Charging networks, utilities	Location, energy use patterns	Monthly